

ELIZABETH II



1985 CHAPTER xi

An Act to re-enact with amendments certain local enactments in force within the borough of Luton; and for other purposes. [13th June 1985]

WHEREAS by virtue of the Local Government Act 1972 1972 c. 70. (hereinafter referred to as "the Act of 1972") the borough of Luton was constituted on 1st April 1974 comprising the former county borough of Luton:

And whereas certain local enactments were in force in the said former county borough and by section 262 of the Act of 1972 it was provided that, subject to certain exceptions, certain local statutory provisions should cease to have effect at the end of 1984, a period since extended by order of the Secretary of State so as to expire at the end of 1986:

And whereas it is expedient that some of the said local statutory provisions should be re-enacted with amendments:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of section 239 of the Act of 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Citation and
commence-
ment.

1.—(1) This Act may be cited as the Luton Borough Council Act 1985.

(2) This Act shall come into operation on 1st January 1986.

Interpretation.

2.—(1) In this Act unless the context otherwise requires—
“the airport” means the aerodrome owned and managed by the Council and known as Luton Airport;

“the borough” means the borough of Luton;

“the consultative committee” means the consultative committee established by the Council pursuant to the provisions of section 35 of the Civil Aviation Act 1982;

“the Council” means the Luton Borough Council;

“house” means a dwelling-house.

(2) Any reference in this Act to a proper officer shall, in relation to any purpose, be construed as a reference to an officer appointed for that purpose by the Council.

1982 c. 16.

PART II

LUTON AIRPORT

Grants
towards cost
of insulating
houses.

3. The Council may, in accordance with a scheme made by them under the next succeeding section, make grants towards the cost of insulating houses or parts of houses against noise attributable to the use of the airport.

Schemes for
grants towards
cost of
insulating
houses.

4.—(1) The Council may, after consultation with the consultative committee, make a scheme or schemes providing for the making of grants under the last foregoing section in respect of houses in an area, or areas, within or outside the borough; but a scheme under this section need apply only to such classes of houses as the Council think fit.

(2) A scheme under this section shall specify by reference to a map the area, or areas, in which houses must be situated for

the grants to be payable and shall make provision as to the persons to whom, the expenditure in respect of which and the rate at which the grants are to be paid, and may make the payment of any grant dependent upon compliance with such conditions as may be specified in the scheme.

PART II
—cont.

(3) A scheme under this section shall specify a date, not being less than two years after the first publication of the notice referred to in subsection (6) below, not later than which an application may be made to the Council for a grant in accordance with the scheme.

(4) A scheme under this section shall require the Council, in any case where an application for a grant is refused, to give to the applicant at his request a written statement of their reasons for the refusal.

(5) A scheme under this section may make different provision with respect to different areas or different circumstances and may be varied or revoked by a subsequent scheme under this section without prejudice to grants already made.

(6) (a) As soon as may be after the making of a scheme under this section the Council shall publish once at least in each of two successive weeks in one or more newspapers circulating in the area, or areas, to which the scheme relates a notice stating the general effect of the scheme and specifying a place or places in the area, or areas, where a copy of the scheme and of the map therein referred to may be inspected by any person free of charge at all reasonable hours.

(b) A photostatic or other reproduction certified by the proper officer to be a true reproduction of a page, or part of a page of any newspaper being a page or part bearing the date of its publication and containing a notice mentioned in this subsection shall be evidence of the publication of the notice and of the date of the publication.

5. The byelaws made by the Council under section 4 of the Luton Corporation Act 1971 shall, notwithstanding the repeal of the said section 4 by this Act, continue to have effect until revoked as if they had been made by the Council under section 32 of the Civil Aviation Act 1982 and as if for the purposes of section 40 of that Act such of them as relate to the prevention or mitigation of noise had been made by virtue of paragraph (b) of section 27 (1) of that Act.

Existing
byelaws.
1971 c. xxxv.
1982 c. 16.

PART III

MISCELLANEOUS AND GENERAL

6. The Commons Regulation (Luton) Provisional Order Confirmation Act 1894 shall continue to have effect and

Saving for
common land
in Luton.
1894 c. xliii.

PART III
—*cont.*
1972 c. 70.

section 262 (9) of the Local Government Act 1972 shall not apply to that Act.

Repeals.

7.—(1) The Acts specified in Schedule 1 to this Act are hereby repealed to the extent specified in that Schedule.

(2) The saving provisions contained in Schedule 2 to this Act shall have effect.

SCHEDULES

SCHEDULE 1

Section 7.

ENACTMENTS REPEALED

Chapter (1)	Short title (2)	Extent of repeal (3)
58 & 59 Vict. c. lxxxv.	Local Government Board's Pro- visional Orders Confirmation (No. 4) Act 1895.	The Borough of Luton Order 1895.
1 & 2 Geo. 5. c. lxxxvii.	Luton Corporation Act 1911.	The whole Act, except sections 1, 3 to 21, 72 and 75 and Schedule 1.
18 & 19 Geo. 5. c. xiii.	Ministry of Health Provisional Order Confirmation (Luton Extension) Act 1928.	The whole Act.
26 Geo. 5. & 1 Edw. 8. c. xxiii.	Ministry of Health Provisional Order Confirmation (Luton) Act 1936.	The whole Act.
2 & 3 Geo. 6. c. xi.	Ministry of Health Provisional Order Confirmation (Luton Extension) Act 1939.	The whole Act.
10 & 11 Geo. 6. c. xiv.	Luton Corporation Act 1947.	The whole Act.
1969 c. xxi.	Luton Corporation Act 1969.	The whole Act.
1971 c. xxxv.	Luton Corporation Act 1971.	The whole Act.

Section 7.

SCHEDULE 2

SAVING PROVISIONS

1. In so far as anything done under an enactment in force in any area which is repealed by this Act could have been done under any enactment in this Act relating to the same matter in the same area, it shall not be invalidated by the repeal but shall have effect as if done under that last-mentioned enactment.

2. Where an instrument or document refers, either expressly or by implication, to an enactment in force in any area which is repealed by this Act, the reference shall, except where the context otherwise requires, be construed as, or as including, a reference to any enactment in this Act relating to the same matter in the same area.

3.—(1) Anything begun under an enactment repealed by this Act may be continued under any enactment in this Act relating to the same matter as if begun under that last-mentioned provision.

(2) Where any period of time specified in, or having effect in relation to, an enactment repealed by this Act is current at the date of such repeal, any provision of this Act relating to the same matter shall have effect as if that period began to run under that provision.

1972 c. 70. 4. Nothing in this Act shall affect the operation of section 254 of the Local Government Act 1972.

1978 c. 30. 5. The mention of particular matters in this Schedule shall not be held to prejudice or affect the general application of sections 15, 16 and 17 of the Interpretation Act 1978.

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CHAPTER xi

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5. Existing byelaws.

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6. Saving for common land in Luton.
7. Repeals.

SCHEDULES:

- Schedule 1—Enactments repealed.
- Schedule 2—Saving provisions.